

**IN THE CIRCUIT COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA**

**COLONIAL MANOR MHC
HOLDINGS, LLC,**

Plaintiff/Counter-Defendant,

vs.

CASE NO.: 2021-CA-4553

LORI SKIPPER,

**Defendant/Counter-Plaintiff/
Third-Party Plaintiff,**

vs.

**COLONIAL MANOR MHC
HOLDINGS, LLC,**

Plaintiff/Counter-Defendant,

and

**CHERYL PEAKE, in her personal and separate
capacity, and JILL WRIGHT, in her personal
and separate capacity,**

Third-Party Defendants.

_____/

**COLONIAL MANOR'S MOTION TO DISMISS DEFENDANT'S
AMENDED COUNTER COMPLAINT**

Pursuant to Florida Rule of Civil Procedure 1.140(b), Colonial Manor MHC Holdings, LLC ("Plaintiff" or "Colonial Manor") moves to dismiss Defendant/Counter-Plaintiff/Third-Party Plaintiff Lori Skipper's ("Defendant" or "Skipper") Amended Counter Complaint. In support, Colonial Manor states as follows:

BACKGROUND

1. On November 4, 2021, Colonial Manor initiated the instant action by filing a three-count Complaint against Defendant due to Defendant's breach of her Employment Agreement with Colonial Manor.

2. In response, on or about November 23, 2021, Defendant filed a three-count Counterclaim in addition to an Answer to Colonial Manor's Complaint.

3. On December 13, 2021, Colonial Manor filed Plaintiff's Motion to Dismiss Counterclaims.

4. On or about December 27, 2021, Defendant filed an Amended Counterclaim with three counts that were nearly identical to the original Counterclaim filed on November 23, 2021, and failed to resolve multiple procedural and substantive deficiencies noted in Colonial Manor's December 13, 2021 Motion to Dismiss Counterclaims.

5. As a result, on January 7, 2022, Colonial Manor filed Plaintiff's Amended Motion to Dismiss Defendant's Counterclaim ("Amended Motion to Dismiss") due to Defendant's failure to state a claim and procedural deficiencies. Colonial Manor's Amended Motion to Dismiss was set for hearing on February 14, 2022.

6. Following the hearing on Colonial Manor's Amended Motion to Dismiss, Magistrate David P. Caskey recommended that all counts of Defendant's Amended Counterclaim be dismissed with leave to file an amended counterclaim. An Order Adopting and Approving Magistrate's Report and Recommendation was entered on March 21, 2022.

7. Subsequently, on or about March 28, 2022, Defendant filed her second amended counterclaim titled "Amended Counter Complaint" which appears to allege two-counts: (1)

violation of Chapter 723, Florida Statutes, and (2) gender discrimination in violation of 42 United States Code section 3604 (the “Federal Fair Housing Act”).¹

8. The Amended Counter Complaint is essentially a regurgitation of prior (and insufficient) allegations of fact and law. In fact, the two counts of the amended pleading are strikingly similar to the prior pleadings that failed to state a claim. In sum, Defendant’s purported amendment did nothing to cure the problems in this pleading.

ARGUMENT

I. The Amended Counterclaim Still Fails to State a Claim.

Defendant’s lengthy pleading is hopelessly infected with legal argument and citation to case law. Even when one overlooks these defects, the pleading continues to violate Rule 1.110 of the Florida Rules of Civil Procedure. The Rule requires one to plead “a short and plain statement of the ultimate facts showing that the pleader is entitled to relief.” Fla. R. Civ. P. 1.110(b)(2). Defendant’s Amended Counter Complaint fails to comply with this pleading requirement because it impermissibly combines pleadings and lacks the allegations of ultimate fact needed to support the claims for relief. As such, the pleading is nearly indecipherable and fails to state a cause of action. *Chaires v. N. Fla. Nat’l Bank*, 432 So. 2d 183, 185 (Fla. 1st DCA 1983).

Moreover, Defendant’s Amended Counter Complaint attempts to include two (2) brand new parties to these proceedings – Colonial Manor employees, Cheryl Peake (“Peake”) and Jill Wright (“Wright”).² However, Defendant fails to state any specific claim as it applies to each

¹ Notably, Defendant briefly mentions section 760.23(2), Florida Statutes (the “Florida Fair Housing Act”) during a recitation of statutes, rules, and case law, but fails to expand on any allegation or make any specific claim pursuant to the Florida Fair Housing Act.

² Ms. Peake and Ms. Wright have concurrently filed Motions to Quash Process and Service, or in the Alternative, Motions to Dismiss (the “Motions to Quash”). Nothing contained herein is intended to waive Ms. Peake or Ms. Wright’s Motions to Quash.

Counter-Defendant (Colonial Manor) or Third-Party Defendant (Ms. Peake and Ms. Wright) and, instead, makes blanket assertions and commingles all of her claims throughout the Amended Counter Complaint. This is also insufficient. Fla. R. Civ. P. 1.110(f) (“[e]ach claim founded upon a separate transaction or occurrence ... shall be stated in a separate count.”); *Collado v. Baroukh*, 226 So. 3d 924, 927-28 (Fla. 4th DCA 2017) (holding that an action was properly dismissed when the plaintiff, in making “blanket references to ‘defendants’ throughout the complaint . . . commingl[ed] separate and distinct claims against multiple defendants” as prohibited by rule 1.110(f)); *see also K.R. Exch. Servs., Inc. v. Fuerst, Humphrey, Ittleman, PL, et al.*, 48 So. 3d 889, 893 (Fla. 3d DCA 2010) (finding dismissal appropriate when the complaint improperly referred to the defendants collectively and did not “differentiate among the various defendants’ actions and statements”). As such, Defendant’s Amended Counter Complaint must be dismissed.

II. Count I of the Pleading Must Be Dismissed.

Moreover, Count I appears to continue to allege that Defendant’s rights have been violated pursuant to section 723.054, Florida Statutes. *See Am. Counter Compl.*, ¶¶ 9-11. Unfortunately, as in her previous pleadings, Defendant has failed to allege any facts that indicate Colonial Manor (or Ms. Wright or Mr. Peake) has implemented any bylaw, rental agreement, regulation, or rule that infringes upon any rights of its mobile home owners or tenants.

Defendant also alleges that section 723.037(1), Florida Statutes has been somehow violated following the cancellation of a holiday party and Defendant’s receipt of typical day-to-day notices provided to residents by Colonial Manor. *Am. Counter Compl.*, ¶¶ 12-15. Even assuming that Defendant could attempt to state a circuit court claim over a holiday party, Defendant has failed to comply with the conditions precedent to bring any such claim. Section 723.0381, Florida Statutes

requires mediation prior to filing an action in circuit court and, if anyone would be aware of this provision, it is Defendant. For this reason, also, Count I must be dismissed.

III. Count II of the Pleading Must Be Dismissed.

Lastly, Count II appears to allege that Defendant has somehow suffered gender discrimination pursuant to section 3604 of the Federal Fair Housing Act because Colonial Manor has filed the instant action. *Am. Counter Compl.*, ¶¶ 22; 30-31. Section 3604 prohibits discrimination in the sale or rental of a dwelling due to race, color, religion, sex, familial status, or national origin. 42 U.S.C. § 3604. Once again, Defendant has failed to allege any facts that support her assertion that she has been discriminated against, due to her gender, in the sale or rental of a dwelling at Colonial Manor Mobile Home Park.

In fact, Defendant expressly admits that she was approved by “park management to purchase and occupy said home” in Colonial Manor Mobile Home Park. *Am. Counter Compl.*, ¶ 23. As a result, by Defendant’s very own pleadings, her allegations of gender discrimination are contradicted and Defendant is unable to maintain a Fair Housing Claim based upon Colonial Manor’s filing of suit here.

In sum, for all these reasons, Defendant’s Amended Counter Complaint is still not sufficiently pleaded and, as a result, must be dismissed.

WHEREFORE, Plaintiff/Counter-Defendant Colonial Manor, by and through its undersigned counsel, moves this Court to dismiss Defendant/Counter-Plaintiff/Third-Party Plaintiff Lori Skipper’s Amended Counter Complaint and grant any other such relief as may be deemed appropriate by this Court.

Respectfully submitted this 19th day of April, 2022.

/s/ Jordann Wilhelm

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***Counsel for Plaintiff and Third-Party Defendants,
Colonial Manor MHC Holdings, LLC, Cheryl
Peake, and Jill Wright***

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing document was served via U.S. mail on this 19th day of April, 2022, to Defendant, Lori Skipper, at 900 9th Ave. E., Lot 211, Palmetto, Florida 34221.

/s/ Jordann Wilhelm

JORDANN WILHELM